

24STCV04638 24STCV04638

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Case Number: 24STCV04638 Hearing Date: July 7, 2026 Dept: 731

Defendant B4U US, Inc. moves for a protective order limiting Plaintiff's Special Interrogatories (Set One) that Plaintiff Dana Brunetti propounded on the defendant.

The motion is CONTINUED to Tuesday, August 18, 2026, at 8:30am, Dept. 731, Stanley Mosk Courthouse.

The parties are ordered to meet and confer to narrow the number of interrogatories to 50. The meet and confer must take place in person, by telephone, or by videoconference as required by Code of Civil Procedure section 2016.040, subdivision (a).

If the meet and confer is successful, the defendant is ordered to file, at least 10 court days before the hearing, a notice to withdraw the motion.

If the meet and confer proves unsuccessful, the parties are ordered to file, at least 10 court days before the hearing, a joint statement indicating which interrogatories are in dispute and explaining their respective positions as to those interrogatories. The Court shall rule on the remaining issues at the next hearing.

Background

In this employment action, Plaintiff Dana Brunetti

("Plaintiff") alleges that he was hired by Defendant Calvary Holdings, LLC dba Cavalry Media ("Calvary Media") as the company's Chief Content Officer, and B4U US, Inc. dba Tiger Media ("B4U") was directly involved in employment decisions affecting him. The defendants allegedly breached the parties' agreement by refusing to pay Plaintiff all wages owed, resulting in Plaintiff's constructive discharge.

Plaintiff filed this action on February 26, 2024, and on June 20, 2025, filed the operative First Amended Complaint ("FAC") against Defendants Calvary Media, B4U, Keegan Rosenberger, Ishan Saksena, and Does 1 through 20, inclusive, asserting causes of action for: (1) breach of written contract; (2) breach of implied covenant of good faith and fair dealing; (3) failure to pay wages in violation of Labor Code 200-202; (4) waiting time penalties in violation of Labor Code §§ 201-203; (5) constructive wrongful termination in violation of public policy; and (6) for business practices in violation of Business & Professions Code §§ 17200 et seq.

On December 9, 2025, the Court overruled B4U's demurrer to the FAC.

On May 4, 2026, B4U filed the instant motion for protective order (titled motion to quash), seeking to limit the amount of Plaintiff's special interrogatories.

On May 20, 2026, the parties filed a "Joint Stipulation and [Proposed] Order to Continue Hearing on Motion for Protective Order/Motion to Quash Special Interrogatories and Associated Briefing Schedule." The stipulation requested continuing the hearing from June 25, 2026, to July 9, 2026, or to another date convenient for the Court.

On June 25, 2026, the Court called the motion for hearing, conferred with counsel regarding the stipulation, and continued the hearing to July 7, 2026.

Plaintiff filed her opposition to the motion on June 25, 2026.

As of June 30, 2026, no reply had been filed.

Jury trial is set for March 8, 2027.

Legal Standard

“A party may propound to another party either or both of the following: [¶] (1) Thirty-five specially prepared interrogatories that are relevant to the subject matter of the pending action. [¶] (2) Any additional number of official form interrogatories ... that are relevant to the subject matter of the pending action.” (Code Civ. Proc., § 2030.030, subd. (a).)

A party that has propounded more than 35 special interrogatories must attach to each set of interrogatories a declaration required by Section 2030.050. (Code Civ. Proc., §2030.050; see also § 2030.040, subd. (a) [“Subject to the right of the responding party to seek a protective order under Section 2030.090, any party who attaches a supporting declaration as described in Section 2030.050 may propound a greater number of specially prepared interrogatories to another party if this greater number is warranted because of any of the following: [¶] (1) The complexity or the quantity of the existing and potential issues in the particular case. [¶] (2) The financial burden on a party entailed in conducting the discovery by oral deposition. [¶] (3) The expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought”].)

Unless a declaration under Section 2030.050 has been provided, the responding party “need only respond to the first 35 specially prepared interrogatories served, if that party states an objection to the balance ... on the ground that the limit has been exceeded.” (Code Civ. Proc., § 2030.030, subd. (c).)

A responding party may also move for a protective order (Code Civ. Proc., §§ 2030.090 subd. (a).) “This motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Ibid.; id. § 2016.040, subd. (a) [“A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion”].)

“The court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and

expense.” (Code Civ. Proc., § 2030.090 subd. (b).) “This protective order may include, but is not limited to, one or more of the following directions:

(1) That

the set of interrogatories, or particular interrogatories in the set, need not be answered.

(2) That,

contrary to the representations made in a declaration submitted under Section 2030.050, the number of specially prepared interrogatories is unwarranted.

(3) That

the time specified in Section 2030.260 to respond to the set of interrogatories, or to particular interrogatories in the set, be extended.

(4) That

the response be made only on specified terms and conditions.

(Code Civ. Proc., § 2030.090 subd.

(b).)

“If the responding party seeks a protective order on the ground that the number of specially prepared interrogatories is unwarranted, the propounding party shall have the burden of justifying the number of these interrogatories.” (Code Civ. Proc., § 2030.040, subd. (a).)

Discussion

Defendant B4U moves for an order limiting Plaintiff’s Special Interrogatories (Set One), which contains 150 interrogatories, “to a non-duplicative set of no more than 40, or in the alternative, ordering Plaintiff to re-serve a narrowed set consistent with the proportionality requirements of California discovery law.” (Motion, p. 2:22-25.) The interrogatories at issue were “organized into the following categories: Equity Ownership and Control (Nos. 1-10); Funding and Financial Control (Nos. 11-20); Wage and Employment Decisions (Nos. 21-40); Control Over Calvary Operations (Nos. 41-55); Joint Employer Indicia (Nos. 56-70); Alter Ego—Unity of Interest (Nos. 71-94); Alter Ego—Inequitable Result (Nos. 95-106); Communications (Nos. 107-115); Corporate Governance (Nos. 116-125); Knowledge and Participation (Nos. 126-134); Priority of Payments (Nos. 135-138); Business Purpose and

Operations (Nos. 139-145); and Accountability (Nos. 146-150).” (Motion, p. 3:9-16; Declaration of Kevin M. Badkoubehi (“Badkoubehi Decl.”), ¶ 2; Exh. A – a copy of the interrogatories.)

B4U argues that “[r]equiring Defendant to separately research and respond to 150 interrogatories – the majority of which are duplicative – imposes a substantial and disproportionate burden. A streamlined set of 40 non-duplicative interrogatories is more than sufficient to probe all relevant issues raised in the operative complaint.” (Motion, p. 6:6-9.)

In opposition, Plaintiff argues that the number of interrogatories is justified for the following reasons. The FAC “alleges joint employer liability and alter ego liability against multiple defendants. These are not simple theories. Joint employer liability requires proof of actual control over wages, hours, supervision, and discipline. Alter ego liability requires proof of unity of interest, commingling of funds, disregard of corporate formalities, and the inequitable result of maintaining the corporate fiction. Each theory demands its own body of facts.” (Opposition, p. 3:11-16.) In addition, the interrogatories are not duplicative as B4U contends. For example, “[w]hether B4U controlled Plaintiff’s wages, hours, and working conditions (joint employer, Nos. 56-70) is a legally distinct inquiry from whether B4U and Cavalry commingled funds, failed to observe corporate formalities, and operated as a single enterprise (alter ego – unity of interest, Nos. 71-94). These theories have different elements, different legal standards, and different consequences. An interrogatory probing whether B4U supervised Plaintiff’s work is not a duplicate of one asking whether B4U and Cavalry shared bank accounts.” (Opposition, pp. 3:25-4:2.)

Plaintiff also argues that B4U has not shown good cause for the protective order because: “B4U’s entire evidentiary showing consists of counsel’s declaration that the interrogatories ‘were excessive, burdensome, excessive [sic] and redundant.’ There is no estimate of the time or cost to respond. No identification of which specific interrogatories are duplicative, or why. No quantification of burden. No evidence of intent to harass.” (Opposition, p. 2:24-27.)

The Court finds that 150 special interrogatories for an employment case, even one alleging alter ego liability, unduly burdensome. Defense counsel testifies that he attempted to meet and confer with Plaintiff’s counsel regarding reducing the number of interrogatories to a reasonable amount, but

the latter failed to respond to meet and confer efforts. (See Badkoubehi Decl., ¶ 3 [“As required, on the date of April 19, 2026, I contacted the attorneys for plaintiff and met and conferred in this matter via email. I proposed the limitations set forth in my email and offered the necessary interrogatories and offered the limit of 40 special interrogatories. I gave a deadline of 5 days to respond to the meet and confer. There was no response to my meet and confer”]; Exh. B – a copy of the meet and confer letter.) Plaintiff has not denied those facts in his opposition.

For those reasons, the Court finds it proper to continue the hearing and require the parties to meet and confer in an effort to narrow the interrogatories to 50 interrogatories. If the meet and confer conference proves unsuccessful, the Court shall rule on the remaining issues at the next hearing.